



File No.: EXP202307627

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) on May 4, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that the respondent is responsible for cameras in their residence that, due to their location and orientation, are capable of capturing images of the public road and of a property belonging to the claimant, adjacent to that of the respondent” (page no. 1).

Images showing the location of the cameras are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On June 5, 2023, the complaint was forwarded in accordance with the terms of Law 39/2015 (October 1), being delivered to the address indicated as per the Administrative File, with no response having been received in this regard.

The forwarding was reiterated on August 4, 2023, and returned by the Postal Service with the indication of "absent delivery" on August 18, 2023.

FOURTH: On August 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On January 22, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article(s) 5 and 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR.

SIXTH: Once the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

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SEVENTH: On April 15, 2024, collaboration was requested from the local Security Forces and Corps (National Police Estepona) to go to the scene of the events, with no response having been given in this regard, resulting in it not being collected from the Post Office, as stated in the administrative file.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic

law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In the present case, the complaint dated May 4, 2023, is examined, through which the following is conveyed:

“(…) that the respondent is responsible for cameras in their residence that, due to their location and orientation, are capable of capturing images of the public road and of a property belonging to the claimant, adjacent to that of the respondent.”

The “facts” are specified in the presence of a presumably misaligned camera that does not have, according to the evidence provided, a sign informing that it is a video-monitored area.

Article 5.1 c) of the GDPR states the following: Personal data shall be:

“adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements demanded by the applicable regulations.

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The installation of this type of devices must have the mandatory informational sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private spaces, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

It is worth noting that even in the case of a “dummy” camera, it should preferably be oriented towards private spaces, as it is considered that such devices can affect the privacy of third parties who feel intimidated by the belief that they are subject to permanent recording.

The purpose of these devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect areas of third parties who feel intimidated by them, impacting their free transit area or private space.

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

“1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

- a) the identity and contact details of the controller and, where applicable, of its representative;
- b) the contact details of the data protection officer, if applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, if applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time the personal data is obtained, the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any other relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 22(4) of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device."
(*the bold text belongs to this agency).

IV

The principle of presumption of innocence prevents attributing an administrative infraction when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged offender's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a...

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a specific and determined fact, which in any case obliges to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must prevail without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned by the evidence and a contradictory procedure in which one's own positions can be defended. In this regard, the Constitutional Court in its Judgment 76/1990, of 26/04, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal."

The presumption of innocence prevails without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the evidence and a contradictory procedure in which one's own positions can be defended.

According to this principle, no sanction can be imposed based on the culpability of the accused if there is no incriminating evidence that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

V

Conclusion

In the present case, this agency has made requests for collaboration to the local Security Forces and Bodies, and no Act (Report) has been received for unknown reasons that minimally corroborates the described facts, therefore it is appropriate to order the filing of the current procedure.

It has not been possible to verify that the installed cameras affect the private space of the claimant, noting that it is sufficient for them to be oriented towards a private area for them to be considered compliant with the current regulations, without the mere assumptions presented being sufficient to undermine the right to the presumption of innocence of the accused.

In cases like the one described, it is advisable that if the situation persists, the corresponding complaint (Denunciation) be directed to the local Security Forces and Bodies (e.g., Local Police), which can verify the facts in situ, sending the complaint again to this agency.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been accredited, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: ORDER the FILING of the present procedure as it has not been established that any administrative infringement has been committed in the matter at hand.

SECOND: NOTIFY this resolution to B.B.B. and inform the claimant of the outcome of the proceedings.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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